“You pled guilty to crimes that are not actually crimes?” “Correct.”

Tucker Carlson interviews FTX executive Ryan Salame

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Ryan Salame is due to self-surrender to prison on Friday for 7 ½ years. On Wednesday, Tucker Carlson released a two-hour tell-all conversation with Salame in which they both express bewilderment at the charges brought against him, and discuss how the government induced Salame’s guilty plea by threatening the mother of his child. They also talk about the government’s general warping of the narrative around FTX, and how the fear of being indicted by the government or sued by the bankruptcy lawyers has silenced everyone who might speak up.

Almost everyone.

> You have these perceptions because you don’t really know anything beyond what you saw in a headline or in the first four paragraphs of the *New York Times* story. And then when you press a little bit into the details, it’s something totally different from what you thought it was or what you were told it was....And a tragedy like this —a tragedy for the investors—is hijacked by these institutions for political reasons.
>
> (Tucker Carlson)

It’s an explosive interview. I share highlights below.

Salame has filed a last-minute request for another continuance of his self-surrender date, which would see him beginning his sentence on December 7, 2024. I hope his request is granted, if for no other reason than wanting to hear more of his story. One gets the feeling that this interview only scratches the surface.

“In uncovering [the fraud], [the government] manufactured a lot of other crimes.”

Salame originally planned to make political contributions by selling some of his crypto. But his lawyers said that for tax reasons, he should instead borrow the money from Alameda against his crypto. (Carlson agrees that this is how all wealthy people do it and that it’s legitimate.) And then the government accused Salame of being a “straw donor” because they claimed the money was “really” SBF’s money since it had come “from” Alameda. Neither Salame nor Carlson can figure out what the motive was supposed to have been here. Salame had made hundreds of millions of dollars prior to joining Alameda/FTX and ultimately donated around $20-30 million.

The other charge brought against Salame was failure to obtain a U.S. money transmitting licence. However, according to Salame, lawyers had told him that he didn’t need one. The company he ran didn’t touch U.S. customers and others have acknowledged that licences were their responsibility, not Salame’s.

> If you’re getting indicted for not having a U.S. government licence to transfer the funds of people who are not U.S. citizens outside of the United States, that’s insane....Could the FBI arrest a driver in Abu Dhabi for not having a U.S. driver’s licence?
>
> (Tucker Carlson)

So then, why plead guilty? For starters, the government threatened to bring even more charges against Salame if he didn’t. It threatened a bank fraud charge, for instance, because he’d been cc’d on an email with a bank application that allegedly did not completely articulate what the account was for.

But the government intimidated him in other ways also. Salame had immediately cooperated with the government as best he could. And yet around four months after FTX collapsed, thirty FBI agents turned up at his house with a battering ram and assault rifles to take his phone and the phone of his domestic partner, Michelle Bond. Later, the government threatened to indict Bond if Salame didn’t plead guilty. (“So they threatened your family?” “It’s more common than you’d think.”) Knowing the enormous reputational and financial costs of indictments and how difficult it is to win at trial even when one is innocent, Salame pled guilty. The government indicted Bond anyway.

Salame speculates that part of why the government got away with this is because wealthy people don’t attract much sympathy. But he acknowledges that the system can be much worse for people less fortunate than himself and also says that what happened to customers haunts him every day. Ultimately, he doesn’t consider himself a victim. Carlson disagrees.

“The government hands get-out-of-jail-free cards if you parrot the narrative that they want.”

Salame had considered testifying in SBF’s defence. Not because he thought SBF was innocent of everything, but because much of the government’s narrative was inaccurate. He ultimately decided not to because he knew that anyone who made a single mistake on the stand in SBF’s defence would be charged with perjury.

> No one talks to the media more than the prosecutors and the government, even though they sort of lock people up on the other side if they talk to the media. The government sort of controls the narrative publicly, right? So they know how bad the FTX story is and how little the public wants to even think about any aspect of it anymore.
>
> (Ryan Salame)

And if you talk to other defendants or potential witnesses, you should expect to get accused of collusion and threatened with more charges.

Salame describes how the government lets you know the story you need to tell to earn yourself some leniency, but it’s careful not to do so explicitly. Prosecutors might ask you to describe something in a different way or ask you how something reconciles with something else. Salame decided not to lie to save himself but he feels others did and he’s confident Nishad Singh did not think of himself as committing campaign finance fraud at the time.

“You have to feign respect for people like Judge Kaplan, yeah. Well, I don’t. I have no respect.”—Tucker Carlson

Salame and Carlson propose that what drove a lot of the government’s actions in the FTX case was not the pursuit of justice, but a desire to destroy or control the crypto industry.

> For me, the big picture is clear. And it is that this technology is a threat to entrenched power. Therefore, they’ll do whatever it takes to destroy it.
>
> (Tucker Carlson)

They also theorise that Salame was targeted for a campaign finance charge because he gave to Republican candidates rather than Democrats. Salame recalls how Judge Kaplan spent the first half of his comments at Salame’s sentencing criticising Citizens United (who Salame never worked for).

Kaplan went on to make various false accusations and twisted framings, such as that Salame thought, “To hell with the customers—I’ll save myself,” because he withdrew

some money for legal fees while everyone else was withdrawing and before he knew there'd be a bankruptcy, since he had no money in the bank. "What does that have to do with the crime?" Carlson responds. "That's insane! And he said this in open court?"

It is almost unheard of for a judge to hand down a sentence longer than what prosecutors requested. But that is exactly what Kaplan did next.

"You can't say, 'The lawyer told me I could do this, so I did it.' But I don't know what the point of the lawyer is then."

No lawyers were charged with crimes in relation to the FTX collapse. And they were almost literally the only adults in the room. This includes Dan Friedberg, who put out a statement saying that he—Friedberg—was in charge of all regulatory affairs at Alameda. Salame wonders what he is supposed to have done when lawyers assured him that what he was doing with respect to licences and campaign contributions was legal.

The bankruptcy lawyers will take $1 billion in fees from a company that has enough money to pay back customers 120% ("and would have been even more had a number of more intelligent things been done"). These lawyers talk about a huge mess of an organisation with no accountants, when in fact there was an entire accounting department. Bankruptcy lawyers, Salame says, can do whatever they want, and many people aren't speaking up because they're still waiting to settle with the estate.

> It almost sounds like a system designed by and for the benefit of lawyers.
>
> (Tucker Carlson)

According to Salame, the lawyers get a lot of scrutiny in the documentaries that are in production about the fall of FTX.

"And it clicked...that's where the customers' money was."

FTX moved to The Bahamas in 2021 because the country was making a serious effort to regulate digital assets. The move was challenging in many ways. Employees had to leave behind vibrant cities for a quiet island ("they call it island fever"). Almost all real estate had been built either for the impoverished or the ultra-wealthy and so FTX ended up spending $500-750 million on housing for employees. In hindsight, Salame thinks the expenditure should have been more of a red flag, but at the time it didn't seem crazy given Alameda's $2-3 billion a year in profit.

When Alameda's balance sheet leaked in early November 2022, Salame thought it was bad news for Alameda's *lenders*, who had known all along that the loans were secured in large part by FTX's native token. But a rumour started—largely driven by Binance, notes Salame—that the balance sheet somehow showed that FTX didn't have customers' funds. Salame was sure the funds were *somewhere* in the system, since SBF had not been "out there blowing hundreds of millions of dollars on his own personal life". Then Salame learnt that $6-8 billion of customer funds were not where he thought they should be. His reconstruction of events is that the money from Alameda's lenders was used to make various illiquid investments, and when those loans were recalled, customer funds were used to repay them.

Salame reports that these investments actually did really well. Carlson appears surprised and impressed, and they both quickly emphasise that this is not a defence of SBF's crimes. But interestingly, neither can fathom why SBF committed them.

- SALAME: When he couldn't repay the lenders, he should have gotten on the phone and called them and said, "What do you want to do here? Like, I got this ventures book. It's not a bad book. I mean, I could file bankruptcy if you want. I can give you guys the ventures. Like, how do you want to solve this?"
- CARLSON: Yeah. Because once you take that much from an institution, famously, you've got some power.
- SALAME: Yeah, correct. You're almost too—he became too big to fail and then didn't use it.
- CARLSON: Interesting. Why?
- SALAME: I don't know. I think about that a lot. And that's if what I'm telling you turns out to be the correct story.

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